

This matter is scheduled for hearing on **May 7, 2026, at 9:00 am** in this department.

6. 9:00 AM CASE NUMBER: C24-01703
CASE NAME: BLACK DIAMOND PAVER STONES AND LANDSCAPES, INC. VS. HIRSCH CLOSSON
***HEARING ON MOTION IN RE: ATTORNEY FEES AND COSTS ON APPEAL**
FILED BY: HIRSCH CLOSSON
TENTATIVE RULING:

Defendant Hirsch Closson seeks attorneys' fees and costs for work done on appeal in this matter. Plaintiff Black Diamond Paver Stones and Landscapes, Inc, opposes this request, arguing that the amount sought is unreasonably high. Hirsch Closson also seeks costs on the original case, noting that Black Diamond has not sought to tax those costs.

Background

In response to Plaintiff's complaint, Defendant filed a Special Motion to Strike Pursuant to Code of Civil Procedure Section 425.16 (anti-SLAPP). Defendant Prevailed on that motion and the Court dismissed the matter. Defendant sought attorneys' fees. Plaintiff did not oppose those fees. Plaintiff did, however, appeal the anti-SLAPP dismissal. The Court of Appeal affirmed this court's decision. Defendant now seeks fees and costs for the appeal.

Analysis

Code of Civil Procedure section 425.16 provides: "(c)(1) Except as provided in paragraph (2), in any action subject to subdivision (b), a prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs." This provision additionally provides for attorneys' fees for a defendant successfully defending on appeal the trial court's grant of an anti-SLAPP motion. (See, e.g., *Evans v. Unkow* (1995) 38 Cal.App.4th 1490.) The question before the Court today is whether the fees and costs requested by Hirsch Closson are "reasonable."

It is acknowledged that, while Hirsch Closson sought approximately \$28,000 in fees and costs at the trial court stage, it now seeks approximately \$44,000 (after the reply brief) for the costs on appeal and through this motion. The amount sought for successfully defending on appeal and then seeking costs is therefore approximately 1.5 times the amount sought for the motion itself. Black Diamond avers that this amount is unreasonable because the appeal was "straightforward." Black Diamond ignores, however, that appeals necessarily involve additional work in preparing, reviewing, and presenting the record, and in confirming and expanding legal research. Additionally, Hirsch Closson explains that issues not fully raised at the trial court level were subject to increased or new attention at the appellate level. Upon review of Hirsch Closson's request, the amounts sought appear reasonable to the Court.

Ruling

Hirsch Closson's motion (and memorandum of costs) are therefore **granted**. The Court awards \$76,203 in attorneys' fees and interest and \$2,106.33 in costs and interest for a total of \$78,309.33.